Tom Leatherwood, Shelby County Register of Deeds: Instr #KR6070

MAXIMUM PRINCIPAL INDEBTEDNESS FOR TENNESSEE RECORDING TAX PURPOSES IS $ 40,000.00

THIS INSTRUMENT PREPARED BY:
Oakland Deposit Bank
P.O. Box 368
Oakland, TN 38060

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DEED OF TRUST

☐ This instrument secures, among other things, an obligation or obligations incurred for the construction of an improvement on the hereinafter described Land and including the acquisition cost of the Land, and to that extent this instrument constitutes a "construction mortgage", as that term is used in Tenn. Code Ann. 47-9-313.

☐ This instrument secures obligatory advances for commercial purposes, as more particularly hereinafter described.

FOR IN AND CONSIDERATION OF the sum of Ten and No/100ths Dollars ($10.00) cash in hand paid and the other consideration hereinafter described, including the debt and trust hereinafter provided, JOHN P. MESSER AND SPOUSE, JAMIE H. MESSER (collectively, if more than one, the "Grantor") hereby bargains, sells, transfers, sets over and conveys to THOMAS M. MINOR, ATTY., a resident of [having its principal office in] Fayette County, Tennessee, and its successors, successors-in-title and assigns as Trustee (collectively, if more than one, the "Trustee"; said term always referring to the Trustee and its successors in trust), all of Grantor's right, title and interest in and to the real property situated in Shelby County, Tennessee, more particularly described as follows (the "Property"):

Lot 51, Vanvleet Park Subdivision, as shown on plat of record in Plat Book 8, Page 23, in the Register's Office of Shelby County, Tennessee, to which plat reference is hereby made for a more particular description of said property.

THIS BEING THE SAME PROPERTY CONVEYED TO JOHN P. MESSER AND WIFE, JAMIE H. MESSER BY WARRANTY DEED RECORDED SIMULTANEOUSLY HEREWITH IN THE REGISTER'S OFFICE OF SHELBY COUNTY, TENNESSEE.

PROPERTY ADDRESS: 319 N. CLAYBROOK, MEMPHIS, TN 38104

TO HAVE AND TO HOLD the Property, together with the buildings, improvements, and fixtures thereon, and all appurtenances, hereditaments, estate, title and interest thereto belonging, to Trustee forever.

The Property is conveyed subject to the title exceptions, if any, set forth herein (collectively, if more than one, the "Permitted Exceptions").

Grantor covenants that Grantor is lawfully seized and possessed of the Property, has good right to convey it, and that it is unencumbered except for the Permitted Exceptions. Grantor further binds itself and its heirs, representatives and successors to warrant and forever defend the title to the Property to Trustee against the lawful claims of all persons whomsoever, other than claims arising out of the Permitted Exceptions.

Grantor is indebted to Oakland Deposit Bank (herein referred to, together with its successors and assigns, as "Beneficiary") in the principal amount of Forty Thousand and 00/100 ($ 40,000.00), which indebtedness is evidenced by one or more promissory notes payable to the order of Beneficiary (together with any extensions, modifications, renewals and/or replacements thereof, herein referred to collectively as the "Note"). This conveyance is made in order to secure the payment of (1) the indebtedness evidenced by the Note, principal and all interest thereon, together with any and all extensions, modifications and/or renewals thereof, (2) all sums advanced by Beneficiary to Grantor or expended by Beneficiary for Grantor's account or benefit pursuant to the terms of this deed of trust, with interest thereon as provided herein, and the faithful performance of all terms and conditions contained herein, (3) all costs and expenses, including without limitation reasonable attorney's fees, incurred in collecting the indebtedness secured hereby or in enforcing this deed of trust, and (4) any and all other indebtedness(es) of Grantor to Beneficiary, direct or contingent, however evidenced or denominated, and however or whenever incurred, including without limitation indebtedness(es) incurred pursuant to any previous, present or future commitment of Beneficiary to Grantor. Notwithstanding the foregoing, if any disclosure required by 12 C.F.R. 226.5b, 226.15, 226.19(b) or 226.23, or 24 C.F.R. 3500.6, 3500.7 or 3500.10, has not been timely provided in connection with one or more loans, credit extensions or obligations of GRANTOR, or any other person whose obligations are secured hereby, then the Security Interest in the Property granted hereby shall not secure the obligation or obligations for which the required disclosure was not given.

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Grantor agrees to pay all real estate taxes and assessments on the Property promptly as they become due; to keep the improvements on the Property insured for the benefit of Grantor and Beneficiary against damage or loss by fire or other casualty (including hazards presently included in so-called "all-risk" coverage) with a company, in an amount, pursuant to a form of policy and containing a loss payable clause reasonably acceptable to Beneficiary; to keep the improvements on the Property in good repair and to permit no waste; to permit Beneficiary to inspect the Property at reasonable times and upon reasonable notice; and to permit no default under any senior deed of trust, mortgage or other encumbrance.

Upon the occurrence of any insurable casualty, Beneficiary shall have the right to adjust, compromise and settle the insurance claim as it sees fit without the necessity for the joinder or approval of Grantor, and Beneficiary in its discretion may apply the net insurance proceeds either to the satisfaction of the indebtedness secured hereby, in such order of priority as Beneficiary shall determine, or to the repair or restoration of the Property pursuant to a disbursement procedure satisfactory to Beneficiary

Upon any condemnation or other taking of the Property or any part thereof by any authority pursuant to the power of eminent domain, Beneficiary shall be entitled to receive the entire amount awarded or paid for such taking, up to the full amount of the indebtedness secured hereby, which amount awarded or paid is hereby assigned to Beneficiary. Beneficiary's right to receive the amount awarded or paid upon any taking shall not be affected, restricted or in any way impaired by the amount or value of any remaining portions of the Property that may continue to be subject to this deed of trust.

If Grantor fails to comply with any agreement or covenant contained herein, Beneficiary shall have the right, but not the obligation, to comply or cause compliance therewith. Grantor shall reimburse Beneficiary on demand for the costs and expenses, including without limitation reasonable attorney's fees, that Beneficiary incurs in so doing, together with interest thereon at the default rate of interest, if any, provided in the Note; if none, then at the maximum contract rate of interest from time to time permitted by applicable law (in no event to exceed 24% per annum). Until repaid, all sums so advanced shall be part of the indebtedness secured hereby.

In the event that Beneficiary or Trustee voluntarily or otherwise shall become a party to any suit or legal proceeding to protect the Property or the lien and security title of this deed of trust, or involving the title to or Beneficiary's or Trustee's interest in the Property, Grantor shall indemnify and save harmless Trustee and/or Beneficiary from any and all liability and shall reimburse them for any amounts paid or incurred, including but not limited to all reasonable costs, charges and attorneys' fees, in any such suit or proceeding, together with interest thereon as hereinabove provided, and the same shall be secured by this deed of trust and its payment enforced as if it were part of the original indebtedness secured hereby.

If the indebtedness evidenced by the Note or any extension, modification or renewal thereof is not paid when due, or if there is a breach of any covenant, condition or agreement contained herein or in any other instrument or document now or hereafter further evidencing, securing or otherwise related to the indebtedness secured hereby, or if any other default or event of default shall occur under any other instrument or document now or hereafter further evidencing, securing or otherwise related to the indebtedness secured hereby, or if any proceedings under any bankruptcy, receivership or other insolvency laws are instituted by or against Grantor or any of its property (and in the case of an involuntary proceeding, the same is not dismissed within 30 days of the institution thereof), Trustee may, after giving twenty (20) days' notice of the time, terms and place of sale by three (3) weekly publications in some newspaper published in the county in which the Property is wholly or partially situated, sell the Property at public auction to the highest bidder for cash, for credit on the indebtedness secured, or upon such other terms as Trustee elects, free from equity of redemption, statutory right of redemption, homestead, dower, elective or distributive share and all other exemptions of every kind, which Grantor hereby expressly waive, and execute a deed to the purchaser, whom Grantor will put in immediate possession of the Property. Beneficiary may bid and become the purchaser at any such sale.

In the event of any sale under this deed of trust by virtue of the exercise of the power herein granted, or pursuant to any order in any judicial proceeding or otherwise, the Property may be sold as an entirety or in separate parcels and in such manner or order as Beneficiary in its sole discretion may elect, and one or more exercises of the power herein granted shall not extinguish or exhaust such power until the entire Property is sold or the indebtedness secured hereby is paid in full.

Any sale hereunder may be postponed by Trustee and reset at a later date without additional publication; provided that an announcement to that effect be made at the scheduled place of sale at the time and on the date the sale is set, either originally or by prior announcement of postponement.

In the event of any sale hereunder, Grantor and all persons holding thereunder shall be and become tenants at will of the purchaser, said tenancy to be terminable at the option of the purchaser immediately upon notice from the purchaser.

In the event of such sale, the proceeds shall be applied as follows:

First, to the costs and expenses of executing this trust, including a reasonable commission to Trustee for making the sale, a reasonable attorney's fee for the services of Trustee's attorney, and all costs and attorney's fees incurred in obtaining possession of the Property or enforcing Beneficiary's rights hereunder;

Second, to the payment of the rest of the indebtedness secured hereby, including without limitation the principal of and interest on the indebtedness evidenced by the Note;

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Third, the balance, if any, to Grantor or to any other person lawfully thereunto entitled.

No delay or forbearance by Beneficiary in exercising any or all of its rights and/or remedies hereunder or otherwise afforded by law shall operate as a waiver thereof or preclude the exercise thereof during the continuance of any default hereunder or in the event of any subsequent default hereunder, and all such rights shall be cumulative.

In the event that this deed of trust shall now or at any time after the date hereof be subordinate to any other encumbrance on the Property, Grantor hereby agrees that the lien and security title of this conveyance shall extend to the entire interest of Grantor in the Property conveyed hereby, and shall extend to the interest of Grantor and the proceeds from any sale of said Property whether by foreclosure of any such prior encumbrance or otherwise, to the extent any such proceeds exceed the amount necessary to satisfy such prior encumbrance(s). Any trustee or other person conducting any such sale or foreclosure is hereby directed to pay such excess proceeds to Beneficiary to the extent necessary to pay the indebtedness secured hereby in full, notwithstanding any provision of the contrary contained in any prior encumbrance.

If Trustee should decline or refuse, or for any reason be unable, to execute this trust when required to do so, or if, at the option of Beneficiary, Beneficiary wishes to replace Trustee, Beneficiary may nominate a successor having all of the rights and powers herein granted to Trustee by executing an appropriate instrument and, at Beneficiary's option, recording same in the aforesaid Register's Office.

In the event that more than one Trustee is named herein, any one of such Trustees, acting alone, shall have full power to act when action hereunder shall be required, and to execute any conveyance of the Property or any part thereof. In the event that more than one Trustee is named herein and the substitution of a Trustee shall become necessary for any reason, the substitution of one Trustee in the place of those or any of those named herein shall be sufficient. No Trustee shall be required to make oath or give bond in connection with this deed of trust.

All rights and obligations hereunder shall inure to the benefit of, and be binding upon, the heirs, representatives, successors and assigns of Grantor, Trustee and Beneficiary.

JAMIE H. MESSER, spouse of Grantor, hereby joins in the execution and delivery of this Deed of Trust for the purpose of acknowledging and consenting hereto, and for the purpose of conveying to Trustee any and all right, title and interest that he/she may have in and to the Property, subject to and upon the terms and conditions set forth in this deed of trust.

The use of the singular number herein shall include the plural, and vice versa, and the masculine or neuter gender shall include all other genders.

IN WITNESS WHEREOF, Grantor has executed this deed of trust, or has caused this deed of trust to be executed, on the 8 th day of November, 2000.

GRANTOR:

By: _____
JOHN P. MESSER

CO-GRANTOR/SPOUSE:

_____
JAMIE H. MESSER

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STATE OF Tennessee)

COUNTY OF Fayette)

Personally appeared before me, the undersigned, a Notary Public in and for the State and County aforesaid, JOHN P. MESSER AND SPOUSE, JAMIE H. MESSER, the within named bargainors, with whom I am personally acquainted (or proved to me on the basis of satisfactory evidence), and who acknowledged that t he y executed the within instrument for the purposes therein contained.

WITNESS my hand and seal at office, this 8 th day of November, 2000.

Dawna E. Culver
Notary Public

My Commission Expires:
11-4-03

STATE OF _____)

COUNTY OF _____)

Before me, the undersigned, a Notary Public in and for the State and County aforesaid, personally appeared _____, with whom I am personally acquainted (or proved to me on the basis of satisfactory evidence), and who, upon oath, acknowledge _____ self to be the _____ of _____, the within-named bargainor, a _____, and that _____ he as such _____ executed the foregoing instrument for the purposes therein contained, by signing the name of the _____ by ____ self as such _____.

WITNESS my hand and seal at office, in _____, _____ County, _____, this _____ day of _____, _____.

_____
Notary Public

My Commission Expires:

_____

KR6070
11/16/2000-13:19:43

Mortgages/Loans: Trust Deed		22
D/C: 7 - DERRICK MARK		40,000.00
MORTGAGE VALUATION		43.70
TN MORTGAGE TAX	N/A	
TN TRANSFER TAX		16.00
RECORDING FEE		2.00
DP FEE		1.00
REGISTER'S FEE	N/A	
WALK THRU FEE		62.70
TOTAL AMOUNT		

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STATE of TENNESSEE, COUNTY of SHELBY
Joe M. Reves, REGISTER